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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/392,009	01/15/2015	Bhaskara Rao Katragadda		9845

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EXAMINER
HOFFMAN, SUSAN COE

ART UNIT	PAPER NUMBER
1655	

MAIL DATE	DELIVERY MODE
08/29/2018	PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action SummaryApplication No.
14/392,009Applicant(s)
Katragadda et al.Examiner
Susan C HoffmanArt Unit
1655AIA Status
No

– The MAILING DATE of this communication appears on the cover sheet with the correspondence address –

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 1/15/15.
☐ A declaration(s)/affidavit(s) under 37 CFR 1.130(b) was/were filed on _____
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-8 is/are pending in the application.
5a) Of the above claim(s) _____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) _____ is/are allowed.
- 7) ☒ Claim(s) 1-8 is/are rejected.
- 8) ☐ Claim(s) _____ is/are objected to.
- 9) ☐ Claim(s) _____ are subject to restriction and/or election requirement

* If any claims have been determined allowable, you may be eligible to benefit from the Patent Prosecution Highway program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☒ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on _____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☒ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. _____.
3. ☒ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- 1) ☒ Notice of References Cited (PTO-892)
- 2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date 11/12/15; 2/9/15; 1/15/15
- 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date _____
- 4) ☐ Other: _____

DETAILED ACTION

1. The present application is being examined under the pre-AIA first to invent provisions.
2. Claims 1-8 are currently pending.

Information Disclosure Statement

3. The information disclosure statements filed February 9, 2015 and January 15, 2015 fail to comply with 37 CFR 1.98(a)(2), which requires a legible copy of each cited foreign patent document; each non-patent literature publication or that portion which caused it to be listed; and all other information or that portion which caused it to be listed. It has been placed in the application file, but the information referred to therein has not been considered with the exception of the cited US Patent documents.

Specification

4. The disclosure is objected to because of the following informalities: Pages 6-8 of the specification are objected to because pages 6-8 contain narrative information that does not appear to be part of the claims. According to MPEP section 608.01(a), the claims are the last portion of the specification prior to the abstract. Thus, the Office has categorized pages 6-8 as a continuation of the claims. However, for the sake of examination, they are considered to be part of the specification rather than part of the claims. To correct this error, applicant must cancel the material on pages 6-8 and add this material to the specification in order to maintain the original scope of the disclosure.

Appropriate correction is required.

Claim Rejections - 35 USC § 112

The following is a quotation of the first paragraph of 35 U.S.C. 112(a):

(a) IN GENERAL.—The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor or joint inventor of carrying out the invention.

The following is a quotation of the first paragraph of pre-AIA 35 U.S.C. 112:

The specification shall contain a written description of the invention, and of the manner and process of making and using it, in such full, clear, concise, and exact terms as to enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to make and use the same, and shall set forth the best mode contemplated by the inventor of carrying out his invention.

5. Claim 8 is rejected under 35 U.S.C. 112(a) or 35 U.S.C. 112 (pre-AIA), first paragraph, because the specification, while being enabling for treating HIV or AIDS symptoms, does not reasonably provide enablement for “curing” HIV or AIDS. The specification does not enable any person skilled in the art to which it pertains, or with which it is most nearly connected, to practice the invention commensurate in scope with these claims.

Undue experimentation would be required to practice the invention as claimed due to the quantity of experimentation necessary; limited amount of guidance and limited number of working examples in the specification; nature of the invention; state of the prior art; relative skill level of those in the art; predictability or unpredictability in the art; and breadth of the claims. In re Wands, 8 USPQ2d 1400, 1404 (Fed. Cir. 1988).

Applicant’s claims are broadly drawn to a composition that is cure HIV or AIDS. However, it is well known in the art that there is no currently accepted “cure” for HIV or AIDS. It is not currently possible to completely remove the virus from the body, i.e. to “cure” HIV or AIDS. Applicant’s specification does not set forth any evidence that the claimed product is able to “cure” HIV or AIDS in patients. Thus, since applicant’s specification does not show that the

claimed composition is able to completely remove the HIV virus from the body and the art acknowledges that such a “cure” is not currently possible, a person of ordinary skill in the art would be forced to experiment unduly in order to determine if applicant’s invention actually function as claimed. Therefore, the claims are not considered enabled for “curing” HIV or AIDS.

The following is a quotation of 35 U.S.C. 112(b):

(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-8 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

The claims are generally narrative and indefinite, failing to conform with current U.S. practice. They appear to be a literal translation into English from a foreign document and are replete with grammatical and idiomatic errors.

6. Claim 1 is indefinite because it is in narrative form which makes it unclear what the limitations of the claim are considered to be. The claim states that it is drawn to *Tephrosia purpurea* leaves and describes the leaves as containing chemicals or “morphological structures” which are “very active” in “trapping viruses.” It is unclear what is encompassed by “morphological structures.” In addition, it is unclear what activities are considered to be encompassed by “trapping” viruses and how to determine when a *T. purpurea* leaf is “very

active” in “trapping viruses.” It appears that claim 1 is drawn to the *T. purpurea* leaves themselves and will be examined in this manner.

7. Claim 2 is indefinite due to its narrative form. Claim 2 reads as if it is intended to be dependent on claim 1; however, claim 2 does not explicitly state that it is dependent on claim 1. Claim 2 will be examined as if it does depend on claim 1. It is unclear what degrees of effectiveness are encompassed by “very effective” against retroviral diseases. In addition, the phrase “such as” renders the claim indefinite because it is unclear whether the limitations following the phrase are part of the claimed invention. See MPEP § 2173.05(d). Furthermore, the parameters of “normal, good health” are unclear. Applicant has not defined what characteristics a subject must have in order to be considered in “normal” or “good” health. Claim 2 is also indefinite because it is unclear if the slash indicates “and” or “or.”

8. Claim 3 is indefinite because the use of “possible” and “perhaps” is narrative language rather than definite limitations. This language is inconsistent with U.S. claim construction and makes it unclear what limitations are required by the claim other than that the claim is drawn to an extract from *T. purpurea* leaves.

9. Claim 4 is indefinite due to the narrative language “is also a...”.

10. Claim 5 is indefinite due to the narrative language “are able to...”.

11. Claim 6 is indefinite due to its narrative form and the narrative language “also are effective...”. Claim 6 reads as if it depends from claim 5; however, this is not explicitly stated. Claim 6 will be examined as if it does depend from claim 6. In addition, the use of parentheses is indefinite because it is unclear if the limitations enclosed are required elements of the claim.

12. Claim 7 is indefinite due to the narrative language “are also...”. In addition, it is unclear what degrees of effectiveness are encompassed by “very effective.” Furthermore, it is unclear

what types of infectious diseases are encompassed by “opportunistic infectious diseases associated with primary viral infections.” In addition, the phrase “such as” renders the claim indefinite because it is unclear whether the limitations following the phrase are part of the claimed invention. See MPEP § 2173.05(d). Claim 7 is also indefinite because it is unclear if the slash indicates “and” or “or.”

13. Claim 8 is indefinite due to narrative language. In addition, claim 8 only contains intended uses without any structural limitations. Furthermore, there is a lack of antecedent basis for “the formula” as recited in line 1 of the claim. Claim 8 is also indefinite because it is unclear if the slashes indicate “and” or “or.”

Claim Rejections - 35 USC § 101

35 U.S.C. 101 reads as follows:

Whoever invents or discovers any new and useful process, machine, manufacture, or composition of matter, or any new and useful improvement thereof, may obtain a patent therefor, subject to the conditions and requirements of this title.

14. Claims 1-8 are rejected under 35 U.S.C. 101 because the claimed invention is directed to a judicial exception (i.e., a law of nature, a natural phenomenon, or an abstract idea) without significantly more. Claim(s) 1 and 2 is/are directed to *Tephrosia purpurea* leaves. *Tephrosia purpurea* leaves are natural products; thus, claims 1 and 2 are directed to judicial exceptions. Claims 1 and 2 do not include any structural limitations in addition to the leaves themselves; therefore, claims 1 and 2 are not directed to patent eligible subject matter because there are no limitations in the claims that create a markedly distinction between the naturally occurring *Tephrosia purpurea* leaves and the claimed *Tephrosia purpurea* leaves.

Claims 3-8 are drawn to *T. purpurea* leaf extracts. A change in the ratio or amount of compounds to create an "extract" from the plant does not transform the claims into an exemption of the "judicial exception" because amounts/ratios/percentages do not set forth a "markedly different" structure as compared to the naturally-occurring product (see; e.g., *Diamond v. Chakrabarty*, 447 U.S. 303 (1980)). Extraction of plants only concentrates and portions the naturally occurring compounds in the plants which are soluble or insoluble in the particular solvent. General extraction does not necessarily result in a markedly distinct change in the naturally occurring compounds from the plant. Thus, the claims are drawn to mixtures of naturally occurring products. Therefore, the claims are drawn to judicial exceptions.

The claim(s) does/do not include additional elements that are sufficient to amount to significantly more than the judicial exception because the claims does not recite any elements in addition to the naturally occurring products.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of pre-AIA 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

15. Claim(s) 1 and 2 are is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by prior art admitted by applicant in the specification.

Claim 1 and 2 are drawn to *T. purpurea* leaves. *T. purpurea* leaves are a known, naturally occurring product as admitted by applicant on page 1 of the specification.

The leaves are not stated as being useful for the same purposes as claimed by applicant in claims 1 and 2. However, a recitation of the intended use of the claimed invention must result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

16. Claim(s) 1-8 is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Mohammad Najmul Ghani Khan ("Joshanda Sarphuka Barai Ishaal-e-Muzmin" formulation in Khazaain-al-Advia. Vol. II (1911). Nadeem Yunus Printer / Sheikh Mohd Basheer & Sons: Lahore).

This reference teaches T. purpurea leaves and T. purpurea leaf extracts useful for treating diarrhea.

The leaves and extracts are not stated as being useful for the same purposes as claimed by applicant in the claims. However, a recitation of the intended use of the claimed invention must result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

17. Claim(s) 1-8 is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Fields (GB 2469577).

This reference teaches T. purpurea leaves and T. purpurea leaf extracts useful for infectious disease, diarrhea, feline AIDS, and liver disease (see paragraph spanning pages 5-6, page 7 and claims 1-4, 18, and 19).

The leaves and extracts are not stated as being useful for the same purposes as claimed by applicant in the claims. However, a recitation of the intended use of the claimed invention must

result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

18. No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Susan Coe Hoffman whose telephone number is (571)272-0963. The examiner can normally be reached on M-Th 8:30am - 3:30pm.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at <http://www.uspto.gov/interviewpractice>.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on 571-272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would

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like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/SUSAN HOFFMAN/
Primary Examiner, Art Unit 1655